

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
Ralph Herrera,: Index Number:  
Date Purchased:  
: Date Filed:

Plaintiffs : AMENDED SUMMONS

-against- :

City of New York, New York City Police Department, :  
Police Officer Haroonul Hassan, Shield 6703 of the 67 :  
Precinct, Police Officer Dennis Diaz, Shield 1270 of the :  
67 Precinct, Police Officer Julio Martinez, Shield 7078 of :  
the 67 Precinct and New York City Police Officers John :  
Doe, :: Plaintiff's residence is:  
: 1609 East 172 Street  
Bronx, NY

Defendants :

-----X

## TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Kings County.

Dated: October 5, 2023  
Bronx, NY

Yours, etc.,

*Jason Steinberger*

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiff  
888 Grand Concourse  
Suite 1H  
Bronx, NY 10451  
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Haroonul Hassan, Shield 6703 of the 67 Precinct

Police Officer Dennis Diaz, Shield 1270 of the 67 Precinct

Police Officer Julio Martinez, Shield 7078 of the 67 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
Ralph Herrera,

:

Plaintiffs

:

VERIFIED  
COMPLAINT

-against-

:

City of New York, New York City Police Department, :  
Police Officer Haroonul Hassan, Shield 6703 of the 67 :  
Precinct, Police Officer Dennis Diaz, Shield 1270 of the :  
67 Precinct, Police Officer Julio Martinez, Shield 7078 of :  
the 67 Precinct and New York City Police Officers John :  
Doe,

Defendants

:

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Ralph Herrera (hereinafter referred to as “HERRERA”) is a resident of Kings County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Haroonul Hassan, Shield 6703 of the 67 Precinct (hereinafter referred to as “HASSAN”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Dennis Diaz, Shield 1270 of the 67 Precinct (hereinafter referred to as “DIAZ”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Police Officer Julio Martienz, Shield 7078 of

the 67 Precinct (hereinafter referred to as “MARTINEZ”) was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Police Officers John Doe, the officers involved in the arrest of HERRERA (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. On or about October 26, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

9. That on or about October 5, 2023 a stipulation of unavailability was entered by the undersigned and Defendants. When Plaintiff becomes available, he will sit for a hearing required by Municipal Law 50-H. At said hearing, Plaintiff will testify and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees.

10. That on or about September 16, 2022 at approximately 11:00 PM in the vicinity of 1356 New York Avenue, Kings County, New York, Plaintiff was walking along the street without engaging in any illegal or unlawful conduct when he was stopped and arrested by HASSAN, DIAZ, MARTINEZ and DOES.

11. That at no time did Plaintiff engage in any illegal or unlawful conduct that would justify HASSAN, DIAZ, MARTINEZ or DOES stopping him.

12. That at no time did Plaintiff engage in any illegal or unlawful conduct that would justify HASSAN, DIAZ, MARTINEZ or DOES arresting him.

13. That at no time did Plaintiff possess or exercise custody and control over a loaded gun.

14. That at no time did Plaintiff possess or exercise custody and control over a controlled substance.

15. That despite the fact that Plaintiff did not engage in any criminal or unlawful activity, HASSAN, DIAZ, MARTINEZ and DOES arrested Plaintiff.

16. That after Plaintiff was arrested, he was transferred to the 67 precinct.

17. That while Plaintiff was held in the 67 precinct, he was subjected to a strip search and that nothing of an illegal nature was recovered.

18. That while Plaintiff was held in the 67 precinct he was confined to a cell with numerous other male prisoners for several hours.

19. That after spending several hours in the 67 precinct, he was removed to Kings County Criminal Court, located at 120 Schermerhorn Street, Brooklyn, NY.

20. That while Plaintiff was held in Kings County Central Booking, he was confined to a cell with numerous other male prisoners.

21. That on or about September 18, 2022 Plaintiff was arraigned on docket CR-026851-22KN and charged with Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Controlled Substance in the Third Degree and related charges.

22. That at the time of his arraignment, bail was set and Plaintiff was remanded to the custody of the New York City Corrections Department.

23. That Plaintiff spent multiple days in New York City Department of Corrections custody before he was released.

24. That on and between September 18, 2022 and October 24, 2022 Plaintiff made several court appearances until the matter was dismissed upon application of the Office of the Kings County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

25. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

29. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

30. That as a result of the Defendants' actions, Plaintiff missed several days from work.

31. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

32. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**

37. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, HASSAN, DIAZ, MARTINEZ and DOES persisted in their claim that Plaintiff engaged in illegal and unlawful conduct despite knowing that he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.



42. At all times pertinent hereto, HASSAN, DIAZ, MARTINEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HASSAN, DIAZ, MARTINEZ and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to HASSAN, DIAZ, MARTINEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

46. That the City of New York and New York City Police Department knew that HASSAN was the subject of six (6) previous Civilian Complaint Review Board complaints, two (2) of which were substantiated and yet they continued to employ HASSAN.

47. That the City of New York and New York City Police Department knew that HASSAN was the subject of a disciplinary case, 2023-28284, wherein HASSAN wrongfully frisked an individual known to the New York City Police Department and also failed to give his business card resulting in a disciplinary sentence and yet they continued to employ HASSAN.

48. That the City of New York and New York City Police Department knew that HASSAN was the subject of a civil rights lawsuit, Domonye Kelly v. City of New York, et al., index

number 507789/2023 in Kings County Supreme Court and yet they continued to employ HASSAN.

49. That the City of New York and New York City Police Department knew that HASSAN was the subject of a civil rights lawsuit, Domonye Kelly v. City of New York, et al., index number 507789/2023 in Kings County Supreme Court and yet they continued to employ HASSAN.

50. That the City of New York and New York City Police Department knew that HASSAN was the subject of a civil rights lawsuit, Jayquan Johnson v. City of New York, et al., index number 523899/2019, in Kings County Supreme Court and yet they continued to employ HASSAN.

51. That the City of New York and New York City Police Department knew that DIAZ was the subject of a disciplinary case, 2021-24063 wherein he made computer entries unrelated to official New York City Police Department business and was disciplined. Yet, they continued to employ DIAZ .

52. That the City of New York and New York City Police Department knew that DIAZ was the subject of a disciplinary case, under IAB complaint number 19-17287, wherein he failed to make a complainant report and yet they continued to employ DIAZ.

53. That the City of New York and New York City Police Department knew that DIAZ was the subject of a disciplinary case, under IAB complaint number 21-5522, wherein he made fun of a complainant/victim and yet they continued to employ DIAZ.

54. That the City of New York and New York City Police Department knew that DIAZ was the subject of a disciplinary case, under IAB complaint number 21-20073, wherein he failed to

respond in a timely manner and failed to make a complaint report. Yet they continued to employ DIAZ.

55. That the City of New York and New York City Police Department knew that DIAZ falsely arrested Lawrence Johnson wherein a civil rights lawsuit was brought, Lawrence Johnson v. City of New York, et al., index number 501418/2023, in Kings County Supreme Court and yet they continued to employ DIAZ.

56. That the City of New York and New York City Police Department knew that MARTINEZ was the subject of ten (10) previous Civilian Complaint Review Board complaints, two (2) of which were substantiated and yet they continued to employ MARTINEZ.

57. That the City of New York and New York City Police Department knew that MARTINEZ was also the subject of a Civilian Complaint Review Board complaint, number 202000593, wherein he made exercised unlawful physical force and yet they continued to employ MARTINEZ.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

58. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57 as if more fully stated herein at length.

59. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

60. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

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*/Jason Steinberger*  
Jason A. Steinberger, Esq.  
Attorney for Plaintiffs  
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Suite 1H  
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(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 5, 2023

\_\_\_\_\_*/Jason Steinberger*\_\_\_\_\_  
Jason A. Steinberger